

26STCV12777 26STCV12777

County: los-angeles

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Case Number: 26STCV12777 Hearing Date: July 21, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA¿¿

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14¿

¿

DALE R. HERBST,

Plaintiff,¿

v.

HILL BROTHERS CHEMICAL COMPANY, et al.,

¿

Defendants.¿¿

Case No. 26STCV12777

¿¿¿¿

Hearing Date: July 21, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

DEFENDANT CALOYLYMPIC GLOVE & SAFETY CO.,
INC.'S DEMURRER TO AND MOTION TO STRIKE PORTIONS OF PLAINTIFF'S FIRST AMENDED
COMPLAINT

I.

Background

On May 12, 2026, Plaintiff Dale R. Herbst filed his first amended complaint for personal injury alleging he developed malignant mesothelioma from occupational exposure to asbestos and asbestos-containing products. As pertinent to this motion, Mr. Herbst alleged the following causes of action against Defendant Caloylympic Glove & Safety Co., Inc. ("Defendant"): (3) negligence; (4) strict liability; (5) intentional misrepresentation; (6) concealment; and (7) negligent misrepresentation. Mr. Herbst also alleged a claim for punitive damages against Defendant.

On June 17, 2026, Defendant filed a demurrer as to the third through seventh causes of action pursuant to Code of Civil Procedure section 430.10, subdivisions (e)-(f) and a motion to strike Mr. Herbst's claim for punitive damages. Specifically, Defendant argues that Mr. Herbst fails to allege facts with sufficient specificity to support these causes of action and the allegations are uncertain and ambiguous. As to Mr. Herbst's punitive damages claim, Defendant argues that Mr. Herbst fails to allege sufficient facts to establish that he is entitled to punitive damages and the first amended complaint contains "irrelevant and improper matters."

On July 8, 2026, Mr. Herbst filed an opposition arguing that his first amended complaint sufficiently alleges facts to support his causes of action and to support a demand for punitive damages. Mr. Herbst also argues that Defendant failed to properly plead for uncertainty.

On July 14, 2026, Defendant filed a reply reiterating its argument that Mr. Herbst's causes of action are vague, ambiguous, and allege only conclusory facts that are insufficient to sustain the five causes of action in dispute here. Defendant also argues that Mr. Herbst's unreasonable demands hindered

meet and confer efforts.

The

demurrer is overruled. The motion to strike is denied.

II.

Discussion

A.

Legal Standards

1. Legal

Standard for General Demurrer

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

2. Legal

Standard for Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ.

Proc., § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436 subd.(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code Section 3294. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 63; College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 721.) The statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).) "Malice" is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) "'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious

disregard of that person's rights." (Civ. Code, § 3294 subd. (c)(2).) "'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c)(3).) With respect to a corporate defendant, "the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code § 3294, subd. (b).)

B.

Analysis

1.

Meet and Confer

Code of Civil Procedure section 430.41

requires that before the filing of a demurrer the moving party “shall meet and confer in person or by telephone” with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

Defendant’s counsel states that due to “the extremely short notice Defendant’s counsel received regarding the responsive pleading deadline and Plaintiffs counsel’s unreasonable refusal to provide an extension without Defendant waiving its rights related to an upcoming deposition and discovery practice, no meet and confer process was possible.” (Debus Decl., ¶ 5.) However, Defendant’s exhibit of an email exchange between opposing counsels on June 16, 2026, shows Mr. Herbst stated he “is willing to grant a 2-week extension for [Defendant] to answer the Complaint. Attendance at deposition is not a condition to this proposal.” (Id., Exh. A.) Although the meet and confer efforts were insufficient, the court will address the merits of the demurrer and motion to strike.

2.

Demurrer: Negligence

“The elements of a cause of action for negligence are well established. They are (a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.” (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917, internal quotations omitted.) “The first element, duty, may be imposed by law, be assumed by the defendant, or exist by virtue of a special relationship.” (Doe v. United States Youth Soccer Assn., Inc. (2017) 8 Cal.App.5th 1118, 1128, internal quotations omitted.) “[T]he existence of a duty is a question of law for the court.” (Ky. Fried Chicken of Cal. v. Superior Court (1997) 14 Cal.4th 814, 819.) “Breach is the failure to meet the standard of care.” (Coyle v. Historic Mission Inn Corp. (2018) 24 Cal.App.5th 627, 643.) “The element of causation requires there to be a connection between the defendant’s breach and the plaintiff’s injury.” (Id., at p. 645.)

Here, Defendant demurs to the cause of action for negligence on the grounds that Mr. Herbst failed to allege facts that Defendant owed him a duty and that Defendant breached that duty, “and instead provides general conclusory language that alleges breaches occurred by ‘Respirator Defendants.’” (Mot., at p. 6 [emphasis included].)

In opposition, Mr. Herbst argues that the amended complaint sufficiently alleges that Defendant owed Mr. Herbst a duty to provide safety masks that protected against asbestos and Defendant breached said duty by failing to adequately design, test, investigate the hazards, instruct on proper use, and warn of the health hazards and harmful exposures caused by using its safety masks. (Opp., at p. 5.)

The court finds that Mr. Herbst’s factual allegations regarding the cause of action for negligence are sufficient to withstand Defendant’s demurrer. Specifically, the amended complaint states in pertinent part:

“At all times herein mentioned, RESPIRATOR DEFENDANTS and their ‘alternate entities’ were engaged in the business of researching, manufacturing, fabricating, designing, modifying, labeling, assembling, distributing, buying, offering for sale, supplying, selling, inspecting, servicing, installing, renting, marketing, warranting, re-branding, manufacturing for others, packaging, and advertising safety masks.

RESPIRATOR DEFENDANTS knew, or reasonably should have known, that safety masks were dangerous and were likely to be dangerous when used in their intended and reasonably foreseeable manner.

At all times herein mentioned, RESPIRATOR DEFENDANTS singularly and jointly, negligently and carelessly researched, manufactured, fabricated, specified, designed, modified, tested or failed to test, warned or failed to warn of the health hazards, labeled, assembled, distributed, bought, offered for sale, supplied, sold, inspected, serviced, installed, repaired, marketed, warranted, re-branded, manufactured for others, packaged, and advertised safety masks to be used with asbestos, and were unreasonably dangerous because respirable asbestos fibers could be and were inhaled while wearing RESPIRATOR DEFENDANTS’ safety masks resulting in personal injuries to users, consumers, workers, bystanders, and others, including

Plaintiff, DALE R. HERBST.

Said safety masks were used at all times in a manner that was reasonably foreseeable to RESPIRATOR DEFENDANTS thereby rendering said products unsafe and dangerous for use by Plaintiff, DALE R. HERBST. Plaintiff herein alleges that RESPIRATOR DEFENDANTS' negligence caused Plaintiff, DALE R. HERBST, to be exposed to asbestos released from asbestos containing products, and that RESPIRATOR DEFENDANTS' negligence and Plaintiff's exposures to asbestos resulting therefrom were substantial contributing factors in the development of Plaintiff's malignant mesothelioma, and therefore proximately caused Plaintiff's injuries and damages.

At all relevant times, RESPIRATOR DEFENDANTS had a duty to exercise reasonable care while engaging in the activities mentioned above and RESPIRATOR DEFENDANTS breached said duty of reasonable care in that RESPIRATOR DEFENDANTS failed to safely and adequately design, manufacture and/or sell its safety masks; failed to test or adequately test its safety masks; failed to investigate the hazards of its safety masks; failed to instruct on safer uses of its safety masks to minimize or eliminate harmful exposures; failed to warn 'exposed persons,' including Plaintiff, DALE R. HERBST, of the health hazards of using RESPIRATOR DEFENDANTS' safety masks; failed to warn of the harmful exposures caused by use of RESPIRATOR DEFENDANTS' safety masks; failed to instruct on safer uses of said safety masks to minimize harmful exposures; failed to disclose the known or knowable dangers of using RESPIRATOR DEFENDANTS' safety masks; and/or failed to obtain or offer suitable alternative RESPIRATOR DEFENDANTS' safety masks when such alternatives were available.

RESPIRATOR DEFENDANTS knew, or reasonably should have known, that is safety masks would be used during the installation, repair, maintenance, overhaul, removal, sawing, chipping, hammering, mixing, scraping, sanding, sweeping, breaking, 'ripping out,' cutting, dumping, disturbing or handling of asbestos, or otherwise in the ordinary, intended and foreseeable use, resulting in the release of airborne hazardous and dangerous asbestos fibers, and that through such activity, 'exposed person,' including Plaintiff, DALE R. HERBST, herein, would be exposed to said hazardous and dangerous asbestos fibers while using RESPIRATOR DEFENDANTS' safety masks in an intended and reasonably foreseeable manner.

RESPIRATOR DEFENDANTS' negligent failure to

warn was a substantial factor in causing harm to Plaintiff, DALE R. HERBST. RESPIRATOR DEFENDANTS knew or reasonably should have known that users, such as Plaintiff, DALE R. HERBST, and others in his position, working with and in close proximity to asbestos would not realize or know the danger of asbestos while wearing its safety masks. RESPIRATOR DEFENDANTS thereafter negligently failed to adequately warn or instruct of the dangers of asbestos while using its safety masks, as reasonable designers, manufacturers, distributors, sellers, or suppliers, under the same or similar circumstances, would have warned of these dangers to avoid asbestos exposures, a foreseeable risk of harm.”

(FAC ¶¶ 46-50, 52-53.)

The foregoing portions of the amended complaint are sufficiently factually specific and address each of the elements of Mr. Herbst's negligence cause of action. As discussed, the amended complaint sufficiently identifies the specific product, safety mask, that allegedly failed to protect Mr. Herbst from asbestos exposure while working with asbestos-containing products at Long Beach Naval Shipyard. Calolympic may challenge the sufficiency of Mr. Herbst's evidence by a dispositive motion. Defendant's demurrer to Mr. Herbst's negligence cause of action is overruled.

3. Demurrer: Strict Liability

In asbestos cases, plaintiffs must allege that each named defendant's identified product was a substantial factor in causing the illness, instead of alleging globally that all or most of the defendants' products were the cause. (Bockrath v. Aldrich Chemical Co. (1999) 21 Cal.4th 71, 80.) Plaintiffs in asbestos cases may “allege...facts succinctly, and may do so in a conclusory fashion if their knowledge of the precise cause of injury is limited” and “allege additional facts that are important in apprising the defendant of the basis for the claim.” (Id.)

Here, Defendant demurs to this cause of action on the grounds that Mr. Herbst only provided conclusory allegations and “does not provide any actual facts outlining what Defendant did, what designs were defective, what instructions were inadequate, that some defect in the manufacturing process existed, or that the specific products of Defendant that are implicated herein were actually defective or not fit for

their intended use (such as protecting against mere dust as opposed to asbestos)." (Mot., at p. 7.)

In opposition, Mr. Herbst argues that the amended complaint sufficiently alleges that Defendant's safety masks contained design and warning defects resulting in Mr. Herbst lacking protection from asbestos inhalation while using the product. (Opp., at p. 6.) Mr. Herbst also argues that Defendant demands a more stringent level of specificity than the law requires and improperly seeks evidentiary proof at this stage. (Id., at p. 7.)

The court finds that Mr. Herbst's factual allegations identifying the allegedly defective safety masks at issue are sufficient to withstand Defendant's demurrer. Specifically, the amended complaint states in pertinent part:

"Plaintiff, DALE R. HERBST, was given and wore RESPIRATOR DEFENDANTS' safety masks while he and others in his immediate presence removed, replaced, installed, and cleaned up asbestos-containing products at Long Beach Naval Shipyard in or near Long Beach, CA."

(FAC, ¶ 44.)

"RESPIRATOR DEFENDANTS sold safety masks and failed to adequately warn or instruct of the known and knowable dangers and risks of the ordinary, intended, and foreseeable use of its safety masks, which dangers and risks would not have been, and were not, recognized by RESPIRATOR DEFENDANTS's customers or ordinary consumers of the masks, including Plaintiff, DALE R. HERBST.

The lack of sufficient instructions and/or warnings was a substantial factor in causing harm to Plaintiff, DALE R. HERBST and others in Plaintiff's position working with and in close proximity to such products.

RESPIRATOR DEFENDANTS' safety masks were defective and unsafe for their intended purpose and foreseeable use in that, when used said masks would result in inhalation of hazardous and dangerous asbestos fibers by persons wearing the masks, including Plaintiff, DALE R. HERBST. The defect existed in all of said products when they left the

possession of RESPIRATOR DEFENDANTS...

As a direct and proximate result of the actions, defects and conduct outlined herein, Plaintiff, DALE R. HERBST has suffered the injuries and damages alleged herein.”

(FAC, ¶¶ 67-69, 73.)

The foregoing portions of the amended complaint sufficiently identify the defective safety products that allegedly exposed Mr. Herbst to asbestos and when the exposure took place. The allegations are sufficient to provide Defendant with sufficient notice of the basis for Mr. Herbst's strict liability claim. Defendant's demurrer to Mr. Herbst's strict products liability cause of action is overruled.

4. Demurrer: Intentional Misrepresentation

The elements of fraud (i.e. intentional misrepresentation) are: “(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 184.)

Fraud causes of action must be pled with specificity in order to give notice to the defendant and to furnish him or her with definite charges. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal. 3d 197, 216, superseded by amendments to the Unfair Competition Law contained in Proposition 64 on unrelated grounds.) The specificity standard is less stringent “when ‘it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy.’” (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 217, superseded by statute on other grounds as stated in Californians for Disability Rights v. Mervyn's, LLC (2006) 39 Cal.4th 223, 227, quoting Bradley v. Hartford Acc. & Indem. Co. (1973) 30 Cal.App.3d 818, 825.)

Here, Defendant demurs to the intentional

misrepresentation cause of action on the grounds that the amended complaint does not overcome the heightened specificity requirement for a fraud claim because it lacks facts specifically alleging Defendant made misrepresentations rather than the “Respirator Defendants” in general. (Motion at p. 7.)

In opposition, Mr. Herbst argues that the amended complaint sufficiently alleges Defendant falsely represented its masks’ ability to prevent asbestos inhalation when used properly, Defendant knew such misrepresentations were false but made them with an intent to induce consumers like Mr. Herbst to justifiably rely on these misrepresentations, leading to asbestos exposure. (Opp., at p. 7.) Mr. Herbst also argues that Defendant launched a marketing/advertising campaign purporting to be a trusted expert in respiratory protection, specifically protection from asbestos dust, and even sent direct correspondences to individual customers, although it knew that its masks “revealed significant leakage during inhalation.” (Opp., at pp. 7-8.) Specifically, before Mr. Herbst’s employment, Defendant had knowledge of the masks’ defects, and during his employment, National Institute of Occupational Safety and Health ceased recommending Defendant’s masks for asbestos protection leading to amended OSHA standards in 1986. (Opp., at p. 8.) Lastly, Mr. Herbst contends that Defendant possesses superior knowledge of the facts because it solely possesses knowledge about the confidential tests and marketing as to the masks. (Opp., at p. 10.)

The court finds that Mr. Herbst’s factual allegations regarding his fraudulent misrepresentation claim are sufficient to withstand Defendant’s demurrer. (See FAC, ¶¶ 81-88, 94-96.)

Calolympic’s demurrer to Mr. Herbst’s intentional misrepresentation cause of action is overruled.

5. Demurrer: Fraudulent Concealment

“[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact; (2) the defendant must have been under a duty to disclose the fact to the plaintiff; (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact; and

(5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Boschma v. Home Loan Center, Inc. (2011) 198 Cal.App.4th 230, 248.)

Defendant demurs to the concealment cause of action on the grounds that the amended complaint fails to allege with particularity any facts representing what Defendant specifically concealed or how it concealed the information. (Mot., at p. 8.)

In opposition, Mr. Herbst argues that he clearly alleged Defendant concealed the truth about its safety masks’ failure to protect users against asbestos exposure even though Defendant had a duty to disclose because it sold the masks for that specific purpose to his employer. (Opp., at p. 10.) Mr. Herbst also argues that Defendant intentionally concealed the damaging information to deceive its customers and end users for financial gain. (Opp., at p. 11.) In addition, Mr. Herbst contends that neither his employer nor himself knew of the masks’ failure to protect against asbestos and relied on Defendant’s misrepresentations, leading to Mr. Herbst contracting malignant mesothelioma. (Id.) And as with the intentional misrepresentation claim, Mr. Herbst contends that Defendant possesses superior knowledge of the facts here because it solely possesses knowledge about the confidential tests and marketing as to the masks. (Id.)

The court finds that Mr. Herbst’s factual allegations regarding the fraudulent concealment claim are sufficient to withstand Defendant’s demurrer. (FAC, ¶¶ 106-108; 114.)

These allegations in the amended complaint are sufficiently factually specific and address each of the elements of Mr. Herbst’s concealment claim. Defendant may later challenge the factual sufficiency of Mr. Herbst’s arguments regarding concealment through a motion for summary adjudication. Moreover, the requisite specificity standards are lower where the plaintiff asserts fraud based on non-disclosure. (See *Committee On Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 217 [“We observe, however, certain exceptions which mitigate the rigor of the rule requiring specific pleading of fraud. Less specificity is required when “it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy,”] [citing *Bradley v. Hartford Acc. & Indem. Co.* (1973) 30 Cal.App.3d 818, 825 disapproved of on other grounds by *Silberg v.*

Anderson (1990) 50 Cal.3d 205.] Accordingly, Defendant's demurrer to the fraudulent concealment cause of action is overruled.

6. Demurrer: Negligent Misrepresentation

The elements of a cause of action for negligent misrepresentation include "[m]isrepresentation of a past or existing material fact, without reasonable ground for believing it to be true, and with intent to induce another's reliance on the fact misrepresented; ignorance of the truth and justifiable reliance on the misrepresentation by the party to whom it was directed; and resulting damage." (Hydro-Mill Co., Inc. v. Hayward, Tilton & Rolapp Ins. Associates, Inc. (2004) 115 Cal.App.4th 1145, 1154, cleaned up.) The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of "liberal construction" of the pleadings will not ordinarily be invoked. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) To properly allege fraud against a corporation, the plaintiff must plead the names of the persons allegedly making the false representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

"California courts have recognized a cause of action for negligent misrepresentation, i.e., a duty to communicate accurate information, in two circumstances. The first situation arises where providing false information poses a risk of and results in physical harm to person or property. The second situation arises where information is conveyed in a commercial setting for a business purpose." (Friedman v. Merck & Co. (2003) 107 Cal.App.4th 454, 477.)

Defendant demurs to the negligent misrepresentation cause of action on the same grounds as the demurrers to the intentional misrepresentation and concealment causes of action. (Mot., at p. 8.) Defendant argues that the amended complaint is "ambiguous and vague and does not allege facts sufficient to support a cause of action against Defendant." (Id.)

In opposition, Mr. Herbst argues that the amended complaint adequately pleads that Defendant falsely represented to both his employer and him that its masks prevent asbestos exposure, Defendant intended

for them to rely on said misrepresentation for financial gain, and Mr. Herbst and his employer justifiably relied on Defendant's misrepresentations resulting in Mr. Herbst's malignant mesothelioma. (Opp., at p. 12.)

The court finds that Mr. Herbst's factual allegations regarding negligent misrepresentation are sufficient to withstand Defendant's demurrer. (FAC, ¶¶ 119-121.)

The allegations of the amended complaint are sufficiently factually specific and address each of the elements of Mr. Herbst's negligent misrepresentation cause of action. Defendant's demurrer to Mr. Herbst's negligent misrepresentation cause of action is overruled.

7. Motion to Strike

Finally, the court finds that Mr. Herbst's allegations relating to punitive damages are sufficient to withstand Defendant's motion to strike. Defendant argues that Mr. Herbst fails to make sufficiently specific allegations to support a claim for punitive damages. Specifically, Defendant argues: "Plaintiff's FAC alleges no specific or non-conclusory facts related to what Defendant specifically did or did not do, or any facts that would show that Defendant acted with malice, intent, or recklessness towards Plaintiff. In fact, it is not clear at all to Defendant what conclusions are alleged against it as opposed to other 'Respirator Defendants,' or what products Defendant actually sold that caused injuries alleged in the FAC." (Mot. to Strike, at p. 8.)

Defendant further argues that "there are no actual facts other than vague conclusory alleged facts that 'Respiratory Defendants' officers and directors ratified the generally alleged conduct. There are no facts that are specifically pled as to Defendant to allow it to ascertain which of the alleged acts were conducted thereby and therefore ratified. Plaintiff makes no attempt to allege that Defendant's corporate officers and directors (1) knew about the alleged conduct and (2) ratified it as is required for such a claim. Plaintiff has not alleged 'advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud ... on the part of an officer, director, or managing agent of' Defendant. (See Cal. Civ. Code § 3294(b).)" (Id., at p. 10.)

In opposition, Mr. Herbst argues that he has alleged sufficiently specific facts to support his claim for punitive damages. Specifically, Mr. Herbst argues that:

As to the negligence and strict liability causes of action, "Plaintiff's Amended Complaint is unequivocal: the facts alleged are that Calolympic's conduct was carried on with willful and conscious disregard of the rights or safety of Mr. Herbst, that its conduct subjected him to cruel and unjust hardship in conscious disregard of his rights, and that its concealment about what it knew about asbestos and the defects of its safety masks was done with the intention to cause injury. Accordingly, taking the above allegations as true and in context with paragraphs 57 through 59 and 75 through 78, Plaintiff's punitive damages allegations under his negligence and strict liability causes of action are proper, and Plaintiff requests that the Court deny Calolympic's request as to these paragraphs."

(Opp. to MTS, at p. 7.)

As to the intentional misrepresentation cause of action, "Plaintiff's Amended Complaint states that Calolympic advertised and marketed its safety masks as effective at preventing asbestos and other dust exposures even though it knew that the safety masks could not provide such protection. And even after the removal of any such advertisement and marketing, Calolympic still did not warn any of the end users, like Mr. Herbst, that its safety masks could not prevent exposure to asbestos, allowing them to continue to rely on its prior statements about their mask's efficacy against asbestos exposure. Taking these facts together and in context, the Court can conclude that Plaintiff's punitive damages for intentional misrepresentation are sufficiently pleaded, and Calolympic's Motion to Strike should be denied as to paragraphs 96, 97, 98, and 99."

(Opp. to MTS, at pp. 10-11.)

As to the concealment cause of action, Mr. Herbst's referenced "allegations make clear [] that Calolympic was under a duty to disclose to Mr. Herbst that its safety masks did not prevent the inhalation of asbestos. Defendant intentionally concealed and suppressed that fact because it wanted to continue selling the masks. Unfortunately, Mr. Herbst was unaware of the masks' defect due to Calolympic's concealment and consequently developed mesothelioma due to the asbestos exposures. Taking these facts together and in

context, the Court can conclude that Plaintiff's punitive damages for concealment are sufficiently pleaded, and Calolympic's Motion to Strike should be denied as to paragraphs 111 and 112."

(Opp. to MTS, at p. 12.)

As to corporate officer knowledge and ratification, "[t]he Amended Complaint expressly and repeatedly alleges that Calolympic and 'its officers, directors, and managing agents participated in, authorized, expressly and impliedly ratified, and had full knowledge of, or should have known of, each of the acts set forth herein.' (Plaintiff's Amended Complaint, at ¶¶ 56, 75, 96, 109, and 122.)"

"The Amended Complaint alleges decades of systematic, company-wide fraudulent conduct spanning marketing, product development, testing, regulatory affairs, and legal strategy: deliberate suppression of internal test results (Plaintiff's Amended Complaint, at ¶¶ 83 and 107), coordinated advertising campaigns making false efficacy claims (Plaintiff's Amended Complaint, at ¶¶ 84, 86, and 90), the decision to challenge OSHA's safety rule (Plaintiff's Amended Complaint, at ¶ 91), and ongoing concealment after independent regulatory bodies reached the same conclusions as internal audits (Plaintiff's Amended Complaint, at ¶¶ 88–92). Such pervasive, organized, institutional misconduct supports the compelling inference that the corporation's managing agents participated in, authorized, or ratified such conduct."

(Opp. to MTS, at pp. 12-13.)

Here, the court finds Mr. Herbst's amended complaint contains sufficient facts to support his claim for punitive damages. The court overrules Defendant's demurrers to the strict liability and fraud-based causes of action. Moreover, the complaint adequately pleads grounds for punitive damages. (FAC, ¶¶ 55(a)-(b), (d)-(g), 74(a)-(b), (d)-(g), 83-90, 94-95, 106-108.)

The foregoing portions of the amended complaint are sufficiently factually specific and address the required elements for punitive damages. If Mr. Herbst can prove his fraud causes of action or strict products cause of action, he may have a basis for punitive damages. Defendant's motion to strike is denied.

III.

Conclusion

The

demurrer is overruled. The motion to strike is denied. Plaintiff is ordered to give notice.